

26STCP01072 26STCP01072

County: los-angeles

Division: Civil Law and Motion

Department: 834

Hearing date: 2026-07-07

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C834%2C07%2F07%2F2026

Source SHA-256: 5a6b5bcbb5a99a9d1937a97dd9c8c0be948ea915b77e62b73483773c84f25db7

Case Number: 26STCP01072 Hearing Date: July 7, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

¿

DERRYL MINNER,

Petitioner(s),

vs.

CITY OF

REDONDO BEACH,

Respondent(s).

Case No.:

26STCP01072

Hearing Date:

July 7, 2026

[TENTATIVE]

ORDER RE: PETITION FOR RELIEF FROM LATE CLAIM LAW

Petitioner Derryl Minner ("Petitioner") seeks leave to present a late claim for damages against Respondent City of Redondo Beach ("Respondent").

The petition is denied.

I.

Background

1.

Factual Background

Petitioner alleges that on August 30, 2024, officers of the Redondo Beach Police Department ("RBPD") subjected him to an unlawful stop and excessive force causing personal injuries, and thereafter Petitioner was indicted with criminal charges ("Incident"). (Minner Decl., ¶ 2-3.) The charges were dismissed on May 12, 2025. (Minner Decl., ¶ 6.)

On February 24, 2025, Petitioner's criminal defense counsel filed a claim to the Los Angeles Police Department ("LAPD") based on the Incident. (Ambaye Decl., ¶ 5, Ex. A.) On March 7, 2025, LAPD notified Petitioner that LAPD did not have jurisdiction over RBPD. (Ambaye Decl., ¶ 7, Ex. C.)

On August 29, 2025, Petitioner applied to Respondent for leave to present a late claim, along with a proposed claim against respondent based on the Incident. (Ambaye Decl., ¶ 13, Exs. E-F.) On September 15, 2025, Respondent denied Petitioner's application. (Ambaye Decl., ¶ 16, Ex. G.)

2.

Procedural History

On March 16, 2026, Petitioner filed his petition for relief from the claim filing requirements of Government Code^[1] section 945.4, along with a supporting memorandum. A proof of service filed April 1, 2026 shows Petitioner served the petition on Respondent by overnight delivery on March 25, 2026. On May 6, 2026, Respondent filed its opposition to the petition. On May 8, 2026, Petitioner filed his reply.

II.

Legal Standard

A plaintiff bringing suit for monetary damages against a public entity or employees thereof must first present a claim to the public entity which must be acted upon or deemed rejected by the public entity. (§§ 945.4, 950.2, 950.6(a).) To be timely, a government claim for damages must be presented to the public entity within six months of the date the cause of action accrued. (§ 911.2.)

If a plaintiff fails to file a government claim within the six-month period, he or she may apply to the public entity for permission to file a late claim. (§ 911.4.) Such an application must be presented within a reasonable time, and not later than one year after the cause of action's accrual. (§ 911.4(b).)

If the public entity denies the application for permission to file a late claim, the plaintiff may file a civil petition for relief from the requirement of timely claim presentation prior to suit. (§ 946.6.) The petition must be filed within six months after the application to the public entity is denied or deemed to be denied. (§ 946.6(b).) The petition must show: (1) that an application was made to the public entity under section 911.4 and was denied or deemed denied; (2) the reason for failure to timely present the claim to the public entity within the time limit specified in section 911.2; and (3) the information required by section 910. (§ 946.6(b).)

The court shall grant relief only if it finds that (1) the application to the public entity for leave to file a late claim was made within a reasonable time not to exceed one year after accrual of the claim as specified in section 911.4(b), (2) was denied or deemed denied by the public agency pursuant to section 911.6, and (3) one or more of the following is applicable: (a) the failure to timely present the claim was through mistake, inadvertence, surprise, or excusable neglect, unless the public entity establishes that it would be prejudiced in the defense of the claim if the court relieves the petitioner from the requirements of section 945.4; (b) the person who sustained the alleged injury, damage or loss was a minor during all of the time specified in section 911.2 for the presentation of the claim; (c) the person who sustained the alleged injury, damage or loss was physically or mentally incapacitated during all of the time specified in section 911.2 for the presentation of the claim and by reason of that disability failed to present a claim during that time; or (d) the person who sustained the alleged

injury, damage or loss died before the expiration of the time specified in section 911.2 for the presentation of the claim. (§ 946.6(c).)

III.

Discussion

Petitioner argues his failure to timely present his claim to Respondent was because of excusable neglect on the basis that his prior counsel assured him she would take all necessary legal steps to pursue monetary claims, but then presented his claim to the wrong public entity.

1.

Petitioner Has Not Shown Excusable Neglect

Petitioner argues that his counsel's presentation of the claim to LAPD rather than RBPB constitutes excusable neglect. Petitioner offers only the general policy in favor of resolving cases on the merits for supporting legal authority. (Opp. at 6, citing *Hernandez v. County of Los Angeles* (1986) 42 Cal.3d 1020.)

In opposition, Respondent presents authority showing that a client or attorney's failure to investigate is not excusable neglect (Opp. at 5, citing *Rojas v. Riverside General Hospital* (1988) 203 Cal.App.3d 1151, 1163, n. 5) and that the purpose of section 946.6 petitions is not to provide relief from inexcusable neglect (Opp. at 4, citing *Mitchell v. D.O.T.* (1985) 163 Cal.App.3d 1016, 1021).

The petitioner has the burden of establishing the basis for relief under section 946.6. (*Department of Water & Power v. Superior Court* (2000) 82 Cal.App.4th 1288, 1294 ["DWP"]; *Munoz v. State of California* (1995) 33 Cal.App.4th 1767, 1783 ["Munoz"].) "Excusable neglect is neglect that might have been the act or omission of a reasonably prudent person under the same or similar circumstances." (*Ebersol v. Cowan* (1983) 35 Cal.3d 427, 435, citing *Tammen v. County of San Diego* (1967) 66 Cal.2d 468, 476; DWP at 1294.) A petitioner or petitioner's counsel must show more than the mere failure to discover a fact until too late; he or she must establish the failure to discover that fact in the use of reasonable diligence. (*Munoz* at 1783, citing *City of Fresno v. Superior Court* (1980) 104 Cal.App.3d 25, 32.)

Petitioner only presents evidence to show his prior counsel presented his claim to the wrong government entity. (Minner Decl., ¶ 6; Ambaye Decl., ¶ 5-8, Exs. A-C.) The record contains no evidence establishing circumstances amounting to excusable neglect under section 946.6. Petitioner presents no evidence or description of what efforts counsel undertook to ensure the claim was presented to the correct entity, nor the cause of counsel's mistaken filing with LAPD. (See generally Petition; Minner Decl.; Ambaye Decl.) Accordingly, the evidence does not show whether the error was the kind "that might have been the act or omission of a reasonably prudent person under the same or similar circumstances." (Munoz, supra, 33 Cal.App.4th at 1782.)

Petitioner has therefore not met his burden to show excusable neglect.[2]

IV.

Conclusion

Petition has not met its burden to show excusable neglect. The petition for relief from claim filing requirements is DENIED.

Date: July 7, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

.

Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

.

If

a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

.

Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

.

If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

All further statutory references are to the Government Code unless otherwise stated.

[2]

Respondent also argues prejudice under *Han v. City of Pomona* (1995) 37 Cal.App.4th 552, but Petitioner served the petition approximately six months after denial of his late claim application, which is not an unreasonable delay under *Han*. In any event, the Court need not reach the issue of prejudice because Petitioner has not met his burden to establish excusable neglect.